

GENTILE v. JOHNSON, et al

23CV46817

**PLAINTIFF'S MOTION TO EXPUNGE LIEN;
PLAINTIFF'S APPLICATION FOR ORDER FOR ISSUANCE OF
WRIT OF ATTACHMENT**

At the hearing on February 9, 2024, both counsel appeared and notified the Court that a settlement had been reached and requested a one-week continuance to finalize the settlement agreement and file a Notice of Settlement and/or Dismissal and vacate the hearing on these motions. Nothing has been filed. The Court on its own motion continues these matters to March 1, 2024, at 9:00 a.m. in Department 2. Counsel are directed to file a Notice of Settlement and/or Dismissal to vacate that hearing by February 23, 2024, at 3:00 p.m. In the event neither has been filed, these matters will proceed for ruling on 3/1/24.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal order is required.

KAISER v. ATKINS, et al

20CV44871

**PLAINTIFF'S MOTION TO CONFIRM THE REFEREE'S
REPORT, APPORTION COSTS OF PARTITION AND REQUEST
FOR FINAL JUDGMENT**

A court trial was held on March 6, 2023, where, inter alia, the court ordered a partition of jointly owned real property by sale, and designated Ms. Darci Watson as referee to sell the real property. The powers of the referee were outlined in the Interlocutory Order After Trial filed on March 20, 2023, and subsequent orders.

The Court grants plaintiff's Request for Judicial Notice.

Plaintiff's motion, memorandum of points and authorities, declarations, items judicially noticed, defendant's record of non-involvement and non-cooperation, and the absence of any objections or opposition all support the Motion to confirm the Referee's sale report. (CCP §§ 873.290, 873.750, and 874.010 et. seq.)

The Court has independently considered the referee's findings and recommendations and confirms the report.

Plaintiff's Motion is GRANTED in toto.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to submit a formal order and final judgment in conformity with this ruling.